



CHAPTER 20.

An Act to extend the provisions of the National Insurance Act, 1911, relating to unemployment insurance to certain trades and employments in connection with the present war. A.D. 1916.
[19th July 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Subject to the provisions of this Act, the provisions of the National Insurance Act, 1911, relating to unemployment insurance (including the provisions as to contributions out of moneys provided by Parliament), as amended by the National Insurance (Part II. Amendment) Act, 1914, and the National Insurance (Part II. Amendment) Act, 1915 (which provisions as so amended are hereinafter referred to as the principal Act), and the regulations made thereunder, shall extend to every person, being a workman within the meaning of the principal Act, who—

Extension of unemployment insurance to certain trades in connection with the present war.
4 & 5 Geo. 5. c. 57.
5 & 6 Geo. 5. c. 27.

- (a) is engaged on or in connection with munitions work as defined by the Munitions of War Acts, 1915 and 1916, except such classes of such work as the Board of Trade may by order exclude ; or
- (b) is employed in a trade mentioned in the First Schedule to this Act ;

5 & 6 Geo. 5. c.c. 54 & 99.

and to his employer, as if the work on which he is engaged or such trade were an insured trade within the meaning of the principal Act :

(2) The provisions of the principal Act mentioned in the Second Schedule to this Act shall not apply in respect of workmen insured under this Act.

2.—(1) Where it appears to the Board of Trade that in any trade or branch of a trade a substantial amount of munitions work or other work for war purposes is being carried on, and

Power to extend to other trades and employments.

[A.D. 1916. —] that it is desirable to extend the provisions of this Act to workmen employed in that trade or branch of a trade, the Board of Trade may by order extend this Act to workmen in that trade or branch of a trade, subject to such exceptions (if any) as may be specified in the order, and thereupon this Act shall, subject to such adaptations (if any) as may be contained in the order, apply as if the trade or branch of a trade mentioned in the order were a trade included in the First Schedule to this Act, and in particular the order may except workmen who can show that they were employed in the trade or branch of the trade before the fourth day of August nineteen hundred and fourteen, or that they were under the age of eighteen years on first becoming employed in the trade or branch of the trade.

(2) Where in any establishment some workmen are insured under this Act, any other workman employed in that establishment may, with his consent and the consent of his employer, be treated as if he were employed in a trade mentioned in the First Schedule to this Act.

imitation on
the time
during which
liabilities and
rights con-
tinue.

3.—(1) This Act, so far as it imposes on employers and workmen a liability to pay contributions, shall cease to have effect at such date as the Board of Trade may by order determine, not being later than five years after the commencement of this Act, or three years after the termination of the present war, whichever of those dates may be the later, and, so far as it confers on workmen a right to receive benefit in respect of such contributions, shall cease to have effect at the expiration of six months from the date so determined or at such later date as the Board may fix.

(2) The Board of Trade shall, in accordance with regulations approved by the Treasury, prepare accounts, so far as practicable, showing separately the estimated receipts and expenditure of the unemployment fund in respect of workmen insured under this Act; and

(a) if the accounts indicate that at the date when benefit ceases to be payable under this Act the payments out of the unemployment fund for the purposes of this Act exceed the aggregate amount of the receipts of that fund under this Act, the Treasury shall out of moneys provided by Parliament repay to the unemployment fund the estimated amount of such excess; and

(b) no modification shall be made under section ninety-three of the principal Act of any of the rates of contribution or rates or periods of unemployment benefit applicable to workmen insured under the principal Act, unless it appears that there would have been ground for such modification if this Act had not been passed.

4.—(1) Nothing in this Act shall affect any workman in an insured trade within the meaning of the principal Act in respect of his employment in that trade. A.D. 1916.

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Relations
between
principal Act
and this Act.

(2) Where any question arises whether the contributions paid or payable in respect of any workman have been paid or are payable under this Act, or under the principal Act, the question shall be decided in the like manner as a question whether a workman is a workman in respect of whom contributions are payable under the principal Act, or whether a trade in which a workman is employed is an insured trade, and the provisions of the principal Act relating to the determination of such questions and the consequences of decisions thereon and requiring any such question to be referred to the umpire shall apply accordingly :

Provided that where contributions have been paid in respect of a workman at one time under the principal Act and at another time under this Act, the Board of Trade may, if they think fit, treat any contributions which have been paid in respect of such workman under this Act as if they had been paid under the principal Act instead of under this Act.

5.—(1) This Act may be cited as the National Insurance (Part II.) (Munition Workers) Act, 1916, and the National Insurance Act, 1911, so far as it relates to unemployment insurance, and the National Insurance (Part II. Amendment) Act, 1914, the National Insurance (Part II. Amendment) Act, 1915, and this Act may be cited together as the National Insurance (Unemployment) Acts, 1911 to 1916. Short title,
citation, and
commence-
ment.

(2) This Act shall come into operation on the fourth day of September nineteen hundred and sixteen, or such later date, not being later than the first day of January nineteen hundred and seventeen, as the Board of Trade may direct.

A.D. 1916.

SCHEDULES.

Sections 1(1), 2.

FIRST SCHEDULE.

LIST OF TRADES.

- (1) The manufacture of ammunition, fireworks, and explosives.
 - (2) The manufacture of chemicals, including oils, lubricants, soap, candles, paints, colours, and varnish.
 - (3) The manufacture of metals and the manufacture or repair of metal goods.
 - (4) The manufacture of rubber and goods made therefrom.
 - (5) The manufacture of leather and leather goods.
 - (6) The manufacture of bricks, cement, and artificial stone and other artificial building materials.
 - (7) Saw milling, including machine woodwork, and the manufacture of wooden cases.
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SECOND SCHEDULE.

Section 1 (2).

PROVISIONS OF PRINCIPAL ACT EXCEPTED.

The section which, by section five of the National Insurance (Part II. Amendment) Act, 1914, is substituted for section ninety-four of the principal Act, which relates to refunds to employers.

Section ninety-five of the principal Act, as amended by section six of the National Insurance (Part II. Amendment) Act, 1914, which relates to refunds to workmen.

The section which, by section seven of the National Insurance (Part II. Amendment) Act, 1914, is substituted for section ninety-six of the principal Act, which relates to remission of contributions in respect of workmen working short time.

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FOR

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